

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PELTON INTERACTIVE, INC., *Complainant*

v.

FLEXPORT INTERNATIONAL LLC, *Respondent*.

DOCKET NO. 24-19

Served: December 13, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON MOTION TO EXTEND DOCUMENT PRODUCTION DEADLINE

On November 8, 2024, pursuant to receipt of the parties' first Joint Status Report ("JSR 1") a scheduling order issued that set discovery deadlines, including completion of document production on December 16, 2024. Scheduling Order at 1. On December 13, 2024, Complainant Peloton Interactive, Inc., filed a Motion for Modification of the Document Production Completion Deadline in the Scheduling Order ("Motion to Extend"), seeking a one-week extension to complete document production. Respondent Flexport International LLC "declined to hold a meet and confer on December 12, and after a number of email exchanges, responded by email that its position was that there was no good faith basis for the motion and no good faith effort to confer on the motion." Motion to Extend at 2. Complainant asserts that good cause exists to extend the deadline for document production by one week because it had "to undertake its review of 33,350 documents—documents that were in many respects technically complicated," and while it "is prepared to produce available documents on December 16, 2024, despite its best efforts, it does not have the ability to produce all of the documents..." *Id.* at 6. As further support, Complainant states it is striving to meet multiple other deadlines in this proceeding which fall between December 12 and 19, 2024, including responding to interrogatories and written responses to requests for production, filing an opposition to Respondent's second dispositive motion (filed the day before Thanksgiving), and filing a mediation statement and attending a mediation session. *Id.* at 4, 6-7.

A response to a non-dispositive motion is due within 7 days of the service of the motion. 46 C.F.R. § 502.71(b). However, because Complainant did not file the motion to extend the document production deadline in sufficient time for a response to be filed as set forth in Rule 71, and the deadline is approaching, a brief extension of the document production will be allowed so Respondent's position can be considered. Accordingly, Respondent is **ORDERED** to respond to the motion to extend by 5 p.m. December 16, 2024. Complainant is **ORDERED** to produce all documents that are available on the date of the original deadline, December 16, 2024, and continue producing documents on a rolling basis until an amended schedule is issued. The parties are cautioned that future discovery motions must be made in sufficient time for the opposing party to have 7 days to respond. Failure to meet and confer on non-dispositive motions and

discovery issues can contribute to delays in discovery and result in unnecessary motions practice. The parties are encouraged to try to resolve disputes such as the instant one without resorting to filing motions.

In the Scheduling Order, I stated that I would consider extending the schedule if the parties are unable to meet the deadlines and can establish good cause for the request. I note that Complainant is seeking to extend only the completion of document production by one week while not disturbing the remaining deadlines, which appears to be reasonable. Respondent should address in its opposition how it would be prejudiced by allowing Complainant to produce some, but not all the documents on December 16, 2024, and completing production on a rolling basis by December 23, 2024.

If the parties would benefit from a video status conference to address this issue, rather than filing further motions or responses, they should confer regarding a mutually convenient time after 9:00 a.m. December 16, 2024, and email a request to Judges@fmc.gov.



Linda S. Harris Crovella
Administrative Law Judge